

HOUSE No. 1048**The Commonwealth of Massachusetts**

PRESENTED BY:

Danillo A. Sena

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to increased protection of wildlife management areas.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Danillo A. Sena</i>	<i>37th Middlesex</i>	<i>1/15/2025</i>
<i>Lindsay N. Sabadosa</i>	<i>1st Hampshire</i>	<i>1/23/2025</i>
<i>David Paul Linsky</i>	<i>5th Middlesex</i>	<i>2/19/2025</i>
<i>James Arciero</i>	<i>2nd Middlesex</i>	<i>2/21/2025</i>
<i>James B. Eldridge</i>	<i>Middlesex and Worcester</i>	<i>2/27/2025</i>
<i>Margaret R. Scarsdale</i>	<i>1st Middlesex</i>	<i>3/31/2025</i>
<i>Paul W. Mark</i>	<i>Berkshire, Hampden, Franklin and Hampshire</i>	<i>3/31/2025</i>
<i>James C. Arena-DeRosa</i>	<i>8th Middlesex</i>	<i>5/12/2025</i>
<i>Greg Schwartz</i>	<i>12th Middlesex</i>	<i>5/14/2025</i>
<i>Marjorie C. Decker</i>	<i>25th Middlesex</i>	<i>5/30/2025</i>
<i>John J. Cronin</i>	<i>Worcester and Middlesex</i>	<i>6/9/2025</i>
<i>Vanna Howard</i>	<i>17th Middlesex</i>	<i>6/25/2025</i>
<i>Sean Garballey</i>	<i>23rd Middlesex</i>	<i>6/27/2025</i>
<i>Michael O. Moore</i>	<i>Second Worcester</i>	<i>6/30/2025</i>
<i>John R. Gaskey</i>	<i>2nd Plymouth</i>	<i>7/21/2025</i>
<i>Carmine Lawrence Gentile</i>	<i>13th Middlesex</i>	<i>8/4/2025</i>
<i>Natalie M. Higgins</i>	<i>4th Worcester</i>	<i>8/18/2025</i>

<i>Angelo J. Puppolo, Jr.</i>	<i>12th Hampden</i>	<i>8/19/2025</i>
<i>Thomas M. Stanley</i>	<i>9th Middlesex</i>	<i>8/29/2025</i>
<i>Joanne M. Comerford</i>	<i>Hampshire, Franklin and Worcester</i>	<i>10/1/2025</i>
<i>Amy Mah Sangiolo</i>	<i>11th Middlesex</i>	<i>11/21/2025</i>
<i>Estela A. Reyes</i>	<i>4th Essex</i>	<i>12/5/2025</i>
<i>Tara T. Hong</i>	<i>18th Middlesex</i>	<i>12/8/2025</i>
<i>Paul J. Donato</i>	<i>35th Middlesex</i>	<i>1/9/2026</i>
<i>Steven Owens</i>	<i>29th Middlesex</i>	<i>1/21/2026</i>

HOUSE No. 1048

By Representative Sena of Acton, a petition (accompanied by bill, House, No. 1048) of Danillo A. Sena and others relative to increased protection of wildlife management areas. Environment and Natural Resources.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to increased protection of wildlife management areas.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 131 of the General Laws is hereby amended in Section 6 by
2 inserting the following-

3 (4) The director shall identify, mark and inform the public regarding all existing
4 designated Reserve areas on the lands referred to as Wildlife Management Areas under its
5 control as of the date of passage of this law.

6 (5) On or before January 1, 2030, the department shall designate a minimum of 30% of
7 all Wildlife Management Area lands under its control as Reserves. Further designations shall be
8 made as additional lands are acquired in order to maintain the minimum of 30% at all times.

9 The Council, pursuant to section 6(6) shall identify lands and waters as Reserves in
10 accordance with the following criteria, which include areas that: contain a significant proportion
11 of trees that are very large, older than 100 years in age, or otherwise exceptional; encompass or
12 build on large blocks of contiguous forest; contain forest interior habitats; encompass wetlands,

13 riparian areas, or headwaters of streams; include Living Waters critical watersheds; provide
14 connectivity with existing Reserves and other core natural areas; include valley bottom land;
15 have a high capacity for ongoing carbon capture and storage; contribute to the mitigation of
16 climate change impacts; are representative of all eco-regions in the state; provide geographic
17 redundancy to ensure against catastrophic disturbances; support viable rare or imperiled natural
18 communities; have unique or unusual ecological significance; or have archeological or historical
19 importance.

20 The Council may from time to time review these selection criteria to ensure they are
21 consistent with available scientific evidence and always serve to enhance ecological protection
22 and public welfare.

23 (6) The secretary of the Executive Office of Energy and Environmental Affairs shall
24 create a “Reserves Scientific Advisory Council,” hereinafter referred to as the Council, to
25 oversee the designation and management of the Reserves, and to suggest additional acquisitions
26 to enhance the ecological value of the Reserves program as a whole. The Council shall consist of
27 eight members, including: one member from the Harvard Forest or designee, who is an expert in
28 forestry and forest management; one member from the Highstead Foundation or designee, who is
29 an expert in forest ecology; one member from the Center for Biological Diversity or designee,
30 who is an expert in nongame wildlife and endangered species; one member from the Native Plant
31 Trust or designee, who is an expert in the field of plant ecology; one member from the Woodwell
32 Climate Research Center or designee, who is an expert in climate; one member from the
33 University of Massachusetts who has technical training and experience in the field of soil or
34 watershed science; one member from Friends of the Middlesex Fells or designee; one member
35 from Friends of the Mohawk Trail State Forest or designee.

36 The members of the council shall be reimbursed for their necessary expenses incurred in
37 the performance of their duties. Each member shall be appointed for a term of three years, except
38 that for the initial term, three members shall be appointed for one year, three members shall be
39 appointed for two years and two members shall be appointed for three years. Any person
40 appointed to fill a vacancy shall serve for the unexpired term. Any member shall be eligible for
41 reappointment.

42 The council's duties shall include overseeing the policies and rules and regulations
43 concerning Reserves, with consultation of additional qualified scientific advisors requested by
44 the Council, to ensure that Reserves are maintained in their natural state with only minimal
45 human intervention, and then only when proven necessary to preserve ecological integrity or
46 protect public health, safety and welfare, consulting with the department regarding the
47 nomination of potential Reserves, and advising the department on budgetary matters related to
48 such Reserves. The council shall submit a biennial report to the governor on or before May first
49 of such year, describing the condition of each Reserve, outlining any actions taken by the council
50 since the last report, and making any recommendations related to the Reserve program which the
51 council deems necessary.

52 The department shall hold a public hearing in accordance with the provisions of Chapter
53 30A, for any substantial management or other activities in designated Reserves.

54 (7) Reserves established in accordance with the provisions of this section shall be
55 monitored and maintained as nearly as possible in its natural condition, and as defined in Chapter
56 31 section 1, and shall be used in a manner and under limitations consistent with its status as a
57 Reserve, without impairment or artificial development for the public purposes of present or

future scientific research and education, and of providing a habitat for plant and animal species, communities and other natural objects and for preservation of areas representative of the significant habitats and ecosystems of the commonwealth.

The division shall, after a determination that said parcel qualifies as a Reserve, hold a public hearing thereon in accordance with the provisions of Chapter 30A.

The Director shall not approve or provide for the installation of new commercial solar arrays, wind electricity generating systems, gas pipelines, commercial communications sites, commercial transmissions lines, cellular communications towers, or other such industrial infrastructure; provided that new solar installations will be allowed if they have the primary purpose of supplying electricity to an existing or approved public facility and the added environmental impacts would not be significant, and the installation of new communication hardware or replacement of existing communications hardware on existing fire towers or communications sites will be allowed if they would not have significant environmental impacts.

SECTION 2. Chapter 131 of the General Laws is hereby amended in Section 1 by inserting the following-

"Reserve", an area permanently protected to allow natural processes to prevail with minimal human interference, which conserves intact ecosystems with the goals of ensuring the recovery and protection of mature and old growth forest ecosystems, maintenance of connected habitat blocks and species movement corridors to promote ecosystem resilience, conservation of habitat for threatened and endangered species, long-term carbon sequestration and storage, nutrient cycling and soil formation, preservation of reference sites for scientific research, comparative studies, and long-term monitoring, and opportunities for wild land recreation. No

timber or other natural resources shall be sold, removed, or destroyed, provided that active management shall be allowed in circumstances where it is proven that such action is necessary to control erosion and stabilize soils; for invasive species management, to maintain existing agricultural fields, vistas, and hiking trails; or for public health, safety and welfare. Creation of new fields, vistas, and wildlife openings is prohibited. The application of pesticides or herbicides shall not be permitted unless there is a clear threat to public health and safety, as determined by the Massachusetts Department of Public Health.

“Early-successional habitat,” also called young forest, pre-forest, early seral, or open habitat, is a regenerating forest dominated by shrubs, sapling trees, and herbaceous vegetation less than 15-20 years old, which may be created by natural disturbances, by artificially maintaining such habitats where they exist, or by clearing a standing forest to expand such habitats with the intention of benefitting specific species.

SECTION 3 - Chapter 131 of the General Laws is hereby amended by inserting the following- Section 5D- No lands under the under the control of the Division shall be cleared for early-successional habitat if there are equivalent other areas in the Commonwealth that meet early-successional habitat criteria equal to 10% of forested land.